

HOUSE No. 4795

The Commonwealth of Massachusetts

PRESENTED BY:

Margaret R. Scarsdale

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act amending the charter for the town of Groton.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>10/30/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>11/22/2025</i>

HOUSE No. 4795

By Representative Scarsdale of Pepperell, a petition (accompanied by bill, House, No. 4795) of Margaret R. Scarsdale and Danillo A. Sena (by vote of the town) for legislation to amend the charter of the town of Groton. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act amending the charter for the town of Groton.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1.9 of the charter for the town of Groton, which is on file in the
2 office of the archivist of the commonwealth, as provided in section 12 of chapter 43B of the
3 General Laws, is hereby amended by inserting after the definition of “Multiple-member body”
4 the following definition:-

5 “Publish”, posting a document on the Town website and in a prominent and accessible
6 location, with hard copies made available upon request.

7 SECTION 2. Section 2.11 of said charter is hereby amended by striking out the first 2
8 paragraphs and inserting in place thereof the following 2 paragraphs:-

9 There shall be published for every town meeting a copy of the warrant, together with its
10 articles, and a report to the voters that shall contain the explanation and relevant data submitted
11 by the proponents of each article; provided, however, that the town manager may direct that

voluminous supporting material necessary for consideration of particular articles be made reasonably available for inspection at public locations before the town meeting in lieu of inclusion in the written report to the voters. The written report for each town meeting shall include: (i) the written report of the planning board setting forth its findings and recommendations as to all zoning articles; (ii) the written report of the finance committee, which shall set forth its findings, conclusions and recommendations and its reasons therefor regarding all of the monetary articles in the warrant; and (iii) with respect to each warrant article, in addition to the reports of the planning board and the finance committee, the written report of a proponent or sponsor of a warrant article and of a multiple-member body or town agency that is required to review, recommend or sponsor the warrant article by law, appointment or otherwise.

The report for the town meeting shall also include, as an appendix, the capital improvement plan defined in section 6.6 setting forth the proposed capital outlay program for the ensuing fiscal year for the information and guidance of town meeting. The select board shall have the opportunity to include in the report its conclusions and recommendations, including its reasons therefore, regarding articles in the warrant that relate to its general superintendence over the administration of town affairs.

SECTION 3. Paragraph 3.2.2 of section 3.2 of said charter is hereby amended by striking out clause (v) and inserting in place thereof the following clause:-

(v) One Member of the Select Board and the Town Manager shall sign all payroll and expense warrants.

SECTION 4. Said section 3.2 of said charter is hereby further amended by striking out paragraph 3.2.4 and inserting in place thereof the following paragraph:-

3.2.4 Appointing Authority - The select board shall appoint the town manager, town counsel, a zoning board of appeals, board of registrars, conservation commission, council on aging, housing partnership, local cultural council and other committees as required by law, by-law or town meeting vote.

SECTION 5. Paragraph 3.3.1 of section 3.3 of said charter is hereby amended by inserting before the words “The Groton-Dunstable” the following words:- Composition, Term of Office -.

SECTION 6. Paragraph 3.3.2 of said section 3.3 of said charter is hereby amended by inserting before the words “The Groton-Dunstable” the following words:- Powers and Duties -.

SECTION 7. Section 3.10 of said charter is hereby amended by inserting before the words “Powers and Duties” the following words:- 3.10.1.

SECTION 8. Said charter is hereby further amended by striking out section 4.2 and inserting in place thereof the following section:-

Section 4.2: Powers and Duties

The town manager shall be the chief administrator of the town and shall be responsible to the select board for the proper administration of all town affairs placed in the town manager’s charge by this charter. The powers and duties of the town manager shall include, but not be limited to:

(i) managing, supervising, and being responsible for the efficient and coordinated administration of all town functions as may be authorized by this Charter, by-law, town meeting

54 vote or the select board, including all appointed officials, employees, department heads and their
55 respective departments;

56 (ii) unless otherwise required by law, this charter or by-law, managing and
57 coordinating the administrative activities of all town agencies; provided, however, that elected
58 officers or their representatives shall be required to meet with the town manager at reasonable
59 times to effect coordination and cooperation among all town agencies;

60 (iii) appointing and removing a police chief, fire chief and town clerk pursuant to the
61 policy established by the select board; provided, however, that the police chief shall serve under
62 section 97A of chapter 41 of the General Laws and the fire chief shall serve under section 42 of
63 chapter 48 of the General Laws; provided, however, that an appointment made by the town
64 manager shall be confirmed by the select board not more than 15 days after the date on which the
65 town manager files notice of the action with the select board; and provided further, that failure
66 by the select board to confirm an appointment in that 15-day period shall constitute rejection of
67 the appointment.

68 (iv) appointing and removing department heads, officers and subordinates and
69 employees and other appointed members of town government for whom no other method of
70 appointment or removal is provided in this charter or by-law; provided, however, that an
71 appointment made by the town manager shall be confirmed by the select board not more than 15
72 days after the date on which the town manager files notice of the action with the select board;
73 and provided further, that failure by the select board to confirm an appointment in that 15-day
74 period shall constitute rejection of the appointment;

75 (v) acting as a negotiator for all collective bargaining agreements to which the select
76 board is a party, subject to ratification by the select board;

77 (vi) conducting or reviewing annual performance evaluations of all employees
78 subject to the town manager's or the select board's appointment and consulting with elected and
79 appointed boards to contribute to the preparation of the evaluations of department heads
80 associated with the boards;

81 (vii) fixing the compensation of all employees appointed by the town manager within
82 the limits established by the overall approved budget, the personnel by-laws, the town's wage
83 and classification schedule and collective bargaining or other agreements;

84 (viii) attending all regular and special meetings of the select board unless excused
85 at the town manager's request and having a voice, but not a vote, in all discussions;

86 (ix) attending all sessions of the town meeting and answering all questions
87 directed to the town manager that are related to the office of the town manager or concerning
88 which the town manager possesses the relevant information;

89 (x) assuring that all laws, this charter, by-laws, town meeting votes and directives
90 of the select board that require enforcement by the town manager or employees subject to the
91 town manager's direction and supervision are faithfully carried out;

92 (xi) preparing and submitting annual operating budgets and capital improvement
93 programs pursuant to article 6;

94 (xii) coordinating the preparation of the town's annual report;

(xiii) overseeing the preservation, management and administration of all town records so as to facilitate access to them; and

(xiv) performing such duties as necessary or as may be assigned by this charter, by-law, town meeting vote or the select board.

SECTION 9. Paragraph 5.3.1 of section 5.3 of said charter is hereby amended by striking out the word “assistant”.

SECTION 10. Said paragraph 5.3.1 of said section 5.3 of said charter is hereby further amended by striking out the word “clause” and inserting in place thereof the following word:- “subsection”.

SECTION 11. Paragraph 5.3.5 of said section 5.3 of said charter is hereby amended by striking out the word “clause” and inserting in place thereof the following word:- “subsection”.

SECTION 12. Paragraph 5.3.6 of said section 5.3 of said charter is hereby amended by striking out the word “clause” and inserting in place thereof the following word:- “subsection”.

SECTION 13. Paragraph 5.3.7 of said section 5.3 of said charter is hereby amended by striking out the word “assistant”, both times it appears.

SECTION 14. Paragraph 5.4.1 of section 5.4 of said charter is hereby amended by striking out the word “clause” and inserting in place thereof the following word:- “subsection”.

SECTION 15. Said charter is hereby further amended by striking out section 5.6.

SECTION 16. Paragraph 6.4.1 of section 6.4 of said charter is hereby amended by striking out the word “October 31” and inserting in place thereof the following words:-
November 30.

SECTION 17. Section 6.5 of said charter is hereby amended by striking out paragraph 6.5.1 and inserting in place thereof the following paragraph:-

6.5.1 The finance committee shall, upon receipt of the proposed budget from the town manager, consider in public meetings detailed expenditures for each town department and agency and may confer with representatives of each town agency in connection with the committee’s review and consideration. The finance committee may require the town manager or any town agency to furnish the committee with such additional information as the committee may deem necessary to assist the committee in its review and consideration of the proposed budget. Not less than 14 days before the opening of the spring town meeting, the finance committee shall file with the town clerk a report containing the committee’s proposed budget and comments or recommendations regarding differences between the committee’s proposed budget and the proposed budget submitted by the town manager. Not less than 14 days before the opening of the spring town meeting the report shall be made available to voters of the town by publication on the town’s website and by leaving copies of the report in not less than 2 public places in the town. Copies of the report shall be made available to voters at the opening of the spring town meeting. The failure to file the report with the town clerk in a timely manner or to publicize the report by posting on the town’s website or in 2 public places in the town shall not prohibit the town meeting from voting on the budget and shall not affect the validity of any vote taken on the budget at town meeting.

135 SECTION 18. Section 6.6 of said charter is hereby amended by striking out the words
136 “December 31” and inserting in place thereof the following words:- January 31.